

The Industrial Disputes (Central) Rules

FORM P-A

To be made in triplicate (* * *)

See Rule 76-A(1)

Form of notice for permission for retrenchment of workmen to be given by an employer under clause (d) of sub-section (1) of Section 25-N of the Industrial Disputes Act, 1947 (14 of 1947)

To,

Date_____

The Central Government/authority* specified under clause (c) of sub-section (1) of Section 25-N.

Sir,

Under clause (c) of sub-section (1) of section 25-N of the Industrial Disputes Act, 1947(14 of 1947), I/we hereby inform you that *I/we propose to retrench_____workmen being workmen to whom sub-section (1) of Section 25-N applies with effect from_____for the reasons set out in the Annexure.

2. The workmen* concerned have been given notice in writing as required under clause (a) of sub-section (1) of Section 25-N/have not been given notice since the retrenchment is under an agreement (copy of which is enclosed) as provided in the proviso to the said clause.
3. The total number of workmen employed in the industrial establishment is_____and the total number of those who will be affected by the proposed retrenchment is as given below:

Category and designation of workman to be retrenched	Number of workman	
	Employed	To be retrenched
(1)	(2)	(3)

4. Permission is solicited for the proposed retrenchment under clause (c) of sub-section (1) of Section 25-N.
5. I/We hereby declare that the workmen permitted to be retrenched will be paid compensation due to them under clause (b) of sun-section (1) of Section 25-N of the Act.

*Yours faithfully,
(Signature).*

*Strike out whatever is inapplicable.

ANNEXURE

(Please give replies against each item)

Item No.

1. Name of the undertaking with complete postal address, including telegraphic addresses and telephone number.
2. Status of undertaking:-
 - (i) Whether Central public sector/State public sector/ foreign majority company /joint sector, *etc.*
 - (ii) If belongs to large industrial house, please indicate the controlling group; and if a foreign majority company, indicate the extent of foreign holdings.
 - (iii) Whether the undertaking is licensed/registered and if so, name of licensing/registration authority and licence/registration certificate numbers.
3. Names and addresses of the workmen proposed to be retrenched and the nature of their duties, the units/sections/shops where they are working and the wages drawn by them.
4. Items of manufacture and scheduled industry/industries under which they fall.
5. Details relating to installed capacity, licensed capacity and utilised capacity.
6. (1) Annual production, item-wise for the preceding three years.
(ii) Production figures month-wise for the preceding twelve months.
7. Work in progress--item-wise and value-wise.
8. Any arrangements regarding off-loading or sub-contracting of products or any components thereof.
9. Position of the order book--item-wise and value-wise for a period of six months and one year next following, and for the period after the expiry of the said one year.
10. Number of working days in a week with the number of shifts per day and the strength of workmen per each shift.
11. Balance sheets, profit and loss accounts and audit reports for the last three years.

12. Financial position of the company.
13. Names of the inter-connected companies or companies under the same management.
14. (i) The total number of workmen (category-wise), and the number of employees other than workmen as defined in the Industrial Disputes Act, 1947 (14 of 1947), employed in the undertaking.
(ii) Percentage of wages of workmen to the total cost of production.
15. Administrative, general and selling cost in absolute terms per year in the last three years and percentage thereof to the total cost.
16. Details of retrenchment resorted to in the last three years, including dates of retrenchment, the number of workmen involved in each case, and the reasons therefor.
17. Has any of the retrenched workmen been given re-employment and if so, when? Give details.
18. Are seniority lists maintained in respect of the categories of workmen proposed to be retrenched and if so, the details and the position of the workmen affected indicating their length of service including broken periods of service?
19. Anticipated savings due to the proposed retrenchment.
20. Any proposal for effecting savings on account of reduction in--
 - (i) managerial remuneration
 - (ii) sales promotion cost, and
 - (iii) General administration expenses.
21. Position of stock on the last day of each of the months in the preceding twelve months.
22. Annual sales figures for the last three years and month-wise sales figures—for the preceding twelve months both item-wise and value-wise.
23. Reasons for the proposed retrenchment.
24. Any specific attempt made so far to avoid the proposed retrenchment.
25. Any other relevant factors with details thereof.